

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

6. JON WATSON V. ASHLEY ROOT

26FL0535

Petitioner filed a Request for Order (RFO) seeking child custody and parenting plan orders, on June 24, 2026. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 13, 2026, and a review hearing on September 24, 2026. Respondent was served the required documents on June 29, 2026.

Respondent filed a Responsive Declaration and Declaration in Support on August 6, 2026. Both were served on Petitioner the same day.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on August 13, 2026.

The court has read and considered the filings as outlined above. The court finds the agreement of the parties to be in the best interest of the minor. The court adopts the agreement as set forth in the August 13th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENT OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE AUGUST 13TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 24, 2026

8:30 AM/1:30 PM

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

Respondent filed a Request for Order (RFO) on June 25, 2026, seeking bifurcation of marital status. Respondent was mail served on July 2, 2026.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems the failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that "[a]ll pension plans that have not been divided by court order that require joinder ..." have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Respondent has filed the requisite paperwork and it appears the requisite retirement plan has been joined. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The parties are ordered to appear for the hearing.

TENTATIVE RULING #7: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.